



TERMS & CONDITIONS

Last Updated: 07-02-2026

These Terms & Conditions ("Terms") govern all services provided by **Kerna**, a sole proprietorship operating under the laws of India ("Service Provider", "Kerna", "we", "us", "our"), to any client ("Client", "you", "your").

By accepting a quotation, making any payment, signing an agreement, or proceeding with any project or service, the Client agrees to be legally bound by these Terms.

1. DEFINITIONS

For the purposes of these Terms:

- **"Agreement"** means the accepted quotation, proposal, invoice, or written communication along with these Terms.
 - **"Scope of Work"** means the specific services and deliverables explicitly mentioned in the Agreement.
 - **"Deliverables"** means the final outputs agreed upon in writing.
 - **"Change Request"** means any request that modifies, expands, or deviates from the agreed Scope of Work.
 - **"Third-Party Services"** include platforms, tools, software, hosting providers, domains, social media platforms, APIs, plugins, or services not owned or controlled by Kerna.
-

2. PROPOSAL & QUOTATION VALIDITY

2.1 All quotations and proposals issued by Kerna are valid for **15 (fifteen) calendar days** from the date of issue, unless stated otherwise in writing.

2.2 After the validity period expires, Kerna reserves the right to revise pricing, scope, timelines, or resource allocation.

2.3 Verbal discussions, informal messages, or assumptions shall not be considered binding unless confirmed in writing by Kerna.

3. SCOPE OF WORK

3.1 Kerna provides services including but not limited to:

- Website design, SEO, and hosting
- eCommerce website development
- Branding and visual identity
- Social media management
- Content creation
- Market analysis and strategy
- Online profile setup and business handholding, including:
 - Google Maps
 - Local business listings
 - Platform setup and operational guidance

3.2 The services applicable to a Client shall be strictly limited to those explicitly mentioned in the approved Agreement.

3.3 Any work not expressly stated in the Scope of Work shall be considered **out of scope**.

4. CHANGE REQUESTS & SCOPE MODIFICATIONS

4.1 Any additions, alterations, enhancements, or modifications beyond the agreed Scope of Work shall be treated as Change Requests.

4.2 Change Requests:

- Must be documented and approved in writing
- May result in revised pricing and timelines

4.3 Kerna is under no obligation to commence Change Request work without written approval.

5. PROJECT TIMELINES & DELIVERY

5.1 Project timelines are estimates and are dependent on timely:

- Client approvals
- Feedback
- Content and materials
- Access to required platforms or accounts

5.2 Delays caused by the Client shall automatically extend delivery timelines without penalty or liability to Kerna.

5.3 Kerna shall not be responsible for delays resulting from:

- Client unavailability
 - Platform outages
 - Third-party service failures
-

6. CLIENT RESPONSIBILITIES

The Client agrees to:

- Provide accurate, complete, and lawful information
- Supply required content, materials, and approvals in a timely manner
- Ensure access to platforms, accounts, or tools when necessary

Kerna shall not be liable for delays, errors, or outcomes resulting from incorrect, delayed, or missing client inputs.

7. REVISIONS & APPROVALS

7.1 Only the number of revisions explicitly stated in the Agreement are included.

7.2 **Minor revisions** include small edits or adjustments.

7.3 **Major revisions** include, but are not limited to:

- Redesigns
- Reshoots
- Structural changes
- Expansion of scope

7.4 Major revisions shall be charged separately.

8. PAYMENT TERMS

8.1 Payment structures may include:

- 100% advance payment, or
- Milestone-based payments

as specified in the Agreement.

8.2 Work shall commence only after receipt of the agreed payment.

8.3 All payments are **non-refundable**, regardless of circumstances.

8.4 Kerna reserves the right to pause work, withhold deliverables, or terminate the engagement in case of delayed or non-payment.

9. NON-REFUND POLICY

Once work has commenced, no refunds shall be issued under any circumstances, including but not limited to:

- Project cancellation
 - Scope changes
 - Client dissatisfaction
 - Early termination
-

10. BEST-EFFORT PERFORMANCE DISCLAIMER

10.1 Kerna provides all services on a **best-effort basis**.

10.2 Kerna does not guarantee specific outcomes, including but not limited to:

- Sales or revenue
 - Leads or conversions
 - Engagement metrics
 - Search engine rankings
 - Platform reach, visibility, or growth
-

11. INTELLECTUAL PROPERTY & OWNERSHIP

11.1 All work created during the engagement remains the intellectual property of Kerna until full and final payment is received.

11.2 Ownership of final deliverables transfers to the Client only upon receipt of full payment.

11.3 Kerna retains the right to reuse non-confidential processes, methodologies, and know-how developed during the engagement.

12. PORTFOLIO & PROMOTIONAL RIGHTS

Kerna may display completed work in its portfolio, website, social media, and promotional materials unless otherwise agreed in writing. Confidential client information shall not be disclosed.

13. THIRD-PARTY PLATFORMS & SERVICES DISCLAIMER

13.1 Kerna does not control third-party platforms or services.

13.2 Kerna shall not be liable for issues arising from:

- Platform policy changes
- Algorithm updates
- Account suspensions or bans
- Downtime or service failures

including but not limited to social media platforms, search engines, hosting providers, and listing services.

14. CLIENT-PROVIDED CONTENT WARRANTY

14.1 The Client represents and warrants that all content, materials, logos, images, videos, and data provided to Kerna are owned by the Client or used with proper authorization.

14.2 Kerna shall not be liable for any legal claims, copyright violations, or disputes arising from the use of client-provided materials.

15. WARRANTY & SUPPORT

Any support period, if mentioned, applies only to bug fixes within the approved scope. New features, enhancements, or changes are not included under warranty.

16. LIMITATION OF LIABILITY

16.1 Kerna shall not be liable for any indirect, incidental, or consequential damages, including but not limited to:

- Loss of business
- Loss of revenue
- Loss of data
- Reputation damage

16.2 Kerna's total liability, if any, shall not exceed the amount paid by the Client for the specific service giving rise to the claim.

17. CONFIDENTIALITY

Both parties agree to maintain confidentiality of all non-public business, technical, and project-related information during and after the engagement.

18. TERMINATION

18.1 Either party may terminate the engagement with written notice.

18.2 The Client shall pay for all work completed up to the termination date.

18.3 No refunds shall be issued upon termination.

19. FORCE MAJEURE

Kerna shall not be liable for delays or failures caused by events beyond reasonable control, including natural disasters, government actions, internet outages, or platform failures.

20. INDEPENDENT CONTRACTOR

Kerna operates as an independent contractor.

Nothing in these Terms shall be deemed to create an employment, partnership, or agency relationship.

21. DATA PROTECTION & RETENTION

21.1 Client data shall be used solely for project-related purposes.

21.2 Kerna may retain client data, files, and records **indefinitely** for record-keeping, support, or internal reference, subject to confidentiality obligations.

22. SEVERABILITY

If any provision of these Terms is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

23. ENTIRE AGREEMENT

These Terms constitute the entire agreement between Kerna and the Client and supersede all prior discussions, communications, or understandings.

24. GOVERNING LAW

These Terms shall be governed by and interpreted in accordance with the laws of **India**.

25. ACCEPTANCE

By proceeding with any quotation, payment, or engagement, the Client acknowledges that they have read, understood, and accepted these Terms & Conditions in full.